

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.5240/2020

Muhammad Hussain **Versus** NAB through its Chairman, Civic
Centre; NAB Headquarter Ataturk
Avenue, Sector G-5/2 Islamabad and
two others

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
----------------------------------	------------------------------	---

09.06.2020	M/S Muhammad Khalid Ashraf, Muhammad Mahmood Ashraf Khan and Abdul Rehman Tariq Khand, Advocates for the petitioner. Mr. Ahmad Raza, Special Prosecutor NAB with Mr. Muhammad Sohail Kamran, Assistant Director/I.O NAB.
------------	---

Through this petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner namely Muhammad Hussain has prayed for grant of post arrest bail in case Reference No. 17-M/2019. The petitioner was investigated by the National Accountability Bureau authorities on the charges of corruption and corrupt practices for having assets beyond known sources of his income, was arrested by National Accountability Bureau authorities and is presently confined in jail.

2. The allegations against the petitioner namely Muhammad Hussain are that the petitioner and his co-accused namely Mst.Samina Nighat (wife of the petitioner and *Benamidar*) had accumulated huge assets beyond known sources of his income. During the investigation, the total value of the assets of the petitioner and his co-accused namely Mst.Samina Nighat (wife of

the petitioner and *Benamidar*) were assessed as of the value of Rs.23,76,45,817.00 .

3. Learned counsels for the petitioner contended that the petitioner has already joined the investigation during which process of collection of evidence has been completed and his incarceration in jail would not serve any useful purpose. . Learned counsels for the petitioner further argued that all the assets in his name were accounted for and he had provided the sources through which the said assets were acquired. Learned counsels for the petitioner further argued that during the tenure of the service of the petitioner there was not a single complaint filed against him or any inquiry was pending against him nor he was involved in any kind of audit para objection and he had not been awarded any penalty. Learned counsels for the petitioner further argued that the petitioner has no connection with the crimes alleged against him. Learned counsels for the petitioner submitted that the petitioner was innocent and had not committed any offence complained of.

4. Learned Special Prosecutor for NAB opposed the petition on the grounds that petitioner is involved in corruption and corrupt practices and the petitioner and his co-accused namely Mst.Samina Nighat(wife of the petitioner and *Benamidar*) had accumulated huge assets beyond known sources of his income which were assessed as of the value of Rs.23,76,45,817.00

5. We have heard the learned counsels for the petitioner , the learned Special Prosecutor for NAB at length and perused the record with their able assistance.

6. We would like to make it clear that the findings in this order are only based on a tentative assessment of the material available on record and shall have no bearing on

the trial which shall be decided on merits based on the evidence placed before the trial court. It is settled principle of law that an elaborate sifting of evidence cannot be made at the time of deciding bail application but only tentative assessment of the same is to be made. It is settled law that in cases of bail, each of the accused needs in some way to be connected with the alleged offence and in the case of non-bailable offences, such as this, there should be reasonable grounds for believing that the accused is connected with the commission of the offense for which he is charged. For offences of corruption made punishable under the National Accountability Ordinance, 1999 (No.XVIII of 1999) the august Supreme Court of Pakistan, in the case of “Rai Mohammed Khan v. NAB” (2017 SCMR 1152) has emphasized that the grant of bail in such cases must be construed strictly and rigidly. It has been held by the august Supreme Court of Pakistan in the case of “Rai Mohammed Khan v. NAB” (supra) as under:

"Under the principle of law and justice, each bail petition is to be decided on its own merits and the law applicable thereto, however, this Court cannot remain oblivious of the undeniable fact that the tendency of corruption in every field, has become a threatening danger to the State economy, striking on its roots. The public money, allocated for social sector and economic well being of the poor people, is consistently embezzled / misappropriated at a large scale and why the majority of the population is deprived of essential daily utilities, like pure drinking water, health care and education facilities, etc. It has become the foremost obligation of each and every institution, including the Judicator, to arrest this

monster at this stage, before it goes out of proportion, posing threat to the very survival of the State and State economy, therefore, the Courts shall apply the Anti-Corruption laws somewhat rigidly, once in fact the case is made out, at bail stage, against the accused person. Distinction, however, is to be drawn between the ordinary criminal cases and of corruption on the above analysis and grounds, while dealing with bail matter to an accused person, charged for such like crimes and also at the time of conviction, once the case is proved against him then, Courts are not supposed to show any mercy by taking a lenient view in the matter of sentence."

During the investigation of the case the petitioner was arrested and during the investigation of the case he failed to provide the sources through which he and his co-accused namely Mst.Samina Nighat (wife of the petitioner and *Benamidar*) had acquired assets which were assessed as of the total value of Rs.23,76,45,817.00. Admittedly, the petitioner namely Muhammad Hussain joined the Govt. service in the department of WAPDA on 01.03.1981 as a helper (basic pay scale 3), remained posted in Maintenance and Testing Department as well as Transformers Reclamation Workshop throughout his service. It is also admitted that the father of the petitioner owned only eleven marlas of land and the petitioner at the time of his entry into the Govt. service did not possess any landed property. Similarly, during the investigation of the case, it was brought on the record that the co-accused of the petitioner namely Samina Nighat Chughtai (second wife of the petitioner and *Benamidar*) did not possess any landed property at the time of her marriage.

Subsequently, the assets of the petitioner saw an astronomical rise for which the petitioner remained unable to offer any explanation. According to the record available, the petitioner and the co-accused of the petitioner namely Samina Nighat Chughtai (second wife of the petitioner and *Benamidar*) have 1071 Kanals 6.19 *Marlas* of land in their name besides having other moveable and immovable properties, the total value of which has been assessed as Rs.23,76,45,817.00. Learned counsels for the petitioner submitted that the petitioner had divorced his co-accused namely Samina Nighat Chughtai on 29.06.2007 and since then had no connection with her or the properties in her name. During investigation the Divorce Deed executed by the petitioner could not be verified from the record of the stamp vendor/DC office because the relevant registers were burnt in a fire. The Divorce Deed was neither registered in the Union Council nor with NADRA. Moreover, as per record, the youngest son of the petitioner and his co-accused namely Mst.Samina Nighat Chughtai was born on 14.07.2009, i.e., two years and fifteen days after the alleged date of divorce (i.e. 29.06.2007). The record also reveals that the petitioner and his co-accused namely Mst.Samina Nighat Chughtai made two foreign visits on the same flight to Saudi Arabia (10.10.2012 to 19.11.2012) and Dubai (26.06.2016 to 07.07.2016) which were almost three years and eight years (respectively) after their alleged divorce. Moreover, on 01.03.2012 the petitioner namely Muhammad Hussain declared Samina Nighat Chughtai as his wife and next of kin in the record of WECHS, Multan, while applying for a MEPCO plot.

7. Under the provisions of the National Accountability Ordinance, 1999 (No.XVIII of 1999) a

person, holding assets directly or indirectly, which are disproportionate to his known sources of income can be called upon to explain and disclose the sources with which such assets were acquired and on his failure to do so, he can be visited with penal consequences provided in the said law. Owing to the fact that provisions of Section 9(a)(v) read with Section 14(c) of the National Accountability Ordinance, 1999 (No.XVIII of 1999) are *prima facie* attracted, it was for the petitioner to produce the requisite evidence and record to show the real ownership of the properties and legitimate sources and transactional money trails to show lawful movement of funds for acquisition of the same. Section 14 (c) of the National Accountability Ordinance, 1999 (No.XVIII of 1999) provides as under:-.

“(c) *In any trial of an offence punishable under clause (v) of sub-section (a) of section 9 of this Ordinance, the fact that the accused person or any other person on his behalf, is in possession, for which the accused person cannot satisfactorily account, of assets or pecuniary resources disproportionate to his known source of income, or that such person has, at or about the time of the commission of the, offence with which he is charged, obtained an accretion to his pecuniary resources or property for which he cannot satisfactorily account **the Court shall presume, unless the contrary is proved, that the accused person is guilty of the offence of corruption and***

corrupt practices and his conviction therefore shall not be invalid by reason only that it is based solely on such a presumption.”

The petitioner has failed to satisfactorily account for the assets found in his name, hence after presumption can be drawn against him that he is guilty of the offence corruption and corrupt practices as provided by the above mentioned section 14 (c) of the National Accountability Ordinance, 1999 (No.XVIII of 1999). Sufficient incriminating material is available on the record to saddle the petitioner with the responsibility of corruption and corrupt practices as he acquired, owned and possessed assets disproportionate to his known sources of income, which he could not reasonably account for. It was also brought on the record that the petitioner maintained a standard of living beyond that which commensurated with his sources of income. Furthermore, a perusal of the record reveals that the petition filed by the co-accused of the petitioner namely Mst. Samina Nighat Chughtai (the second wife of the petitioner and *Benamidar*) seeking her release on bail was dismissed by this Court vide order dated 09.03.2020 passed in Writ Petition No. 781 of 2020, hence, this Court is constrained to treat the petitioner in the same manner as his co-accused and dismiss this petition. In this respect, reliance is placed on the case of Mst. JEWAN MAI versus The STATE and others (PLD 2015 Supreme Court 242), wherein, it was held as under:-

“For what has been discussed above we have found that reasonable ground did exist regarding involvement of Umar Draz respondent in the

murders in issue and, thus, the learned Judge-in-Chamber of the Lahore High Court, Lahore was not justified in admitting the said respondent to post-arrest bail and that too on the basis of grounds which were not legally tenable. Apart from that the learned Judge-in-Chamber had adopted discrepant approaches vis-a-vis different accused persons attributed almost identical roles which approach cannot be approved by this Court. It may be pertinent to mention here that Rab Nawaz co-accused had approached this Court through Criminal Petition No.1162-L of 2014 against the order of the High Court refusing bail to him and the said petition had been dismissed by this Court vide order dated 6-2-2015. As the case against Umar Draz respondent is not materially different from the case against the said Rab Nawaz co-accused, therefore, this Court is to be consistent in its approach. This petition is, thus, converted into an appeal and the same is allowed and consequently the order dated 26-6-2014 passed by the learned Judge-in-Chamber of the Lahore High Court, Lahore in Criminal Miscellaneous No. 8120-B of 2014 is set aside. Let Umar Draz respondent be re-arrested and be lodged in jail pending his trial.”

Prima facie ,there is sufficient material on the record to suggest that the petitioner had exercised his position to enrich himself but we do not want to make any further observation in this regard as it may prejudice the case of either party. Thus, mere fact that in case an accused has remained in custody for a period of about six months will not be sufficient to hold that it is a case of hardship within the parameters as defined by this Court and the

august Supreme Court of Pakistan in this regard in its various earlier pronouncements. For further guidance in this regard, reference can be made to the cases of “Khan Asfandyar Wali v. Federation of Pakistan” (PLD 2001 SC 607) and “Himesh Khan v. The National Accountability Bureau, Lahore” (2015 SCMR 1092). The august Supreme Court of Pakistan in the case of “Tallat Ishaq Vs. National Accountability Bureau through its Chairman and others” (P L D 2019 Supreme Court 250) has held as under:-

*“In an appropriate case through exercise of its jurisdiction under Article 199 of the Constitution a High Court may grant bail to an accused person arrested in connection with an offence under the National Accountability Ordinance, 1999 and section 9(b) of the said Ordinance does not affect the jurisdiction of a High Court conferred upon it by the Constitution. The constitutional jurisdiction of a High Court is, however, **an extraordinary jurisdiction meant to be exercised in extraordinary circumstances** and not in run of the mill cases or as a matter of course.”*

The august Supreme Court of Pakistan in the case of “CHAIRMAN, NATIONAL ACCOUNTABILITY BUREAU, Islamabad through Prosecutor-General Accountability, Islamabad Versus Mian MUHAMMAD NAWAZ SHARIF and 2 others” (P L D 2019 Supreme Court 445) has held as under:-

“With reference to many a precedent case a Larger Bench of this Court has clarified in the case of Tallat Ishaq v. National Accountability Bureau, etc. (Civil Petition No. 632 of 2019 decided on 01.10.2018) that

in cases under the National Accountability Ordinance, 1999 bail may be granted through exercise of Constitutional jurisdiction of a High Court only in extraordinary circumstances and in cases of extreme hardship but in the present cases no such extraordinary circumstance or hardship had been referred to by the High Court in the impugned judgments passed by it.”

8. Thus, for the reasons mentioned above we find that prima facie there is sufficient material to link the petitioner, namely Muhammad Hussain to the commission of the offence for which he has been charged and there exists no reason for exercising an extraordinary jurisdiction meant to be exercised in exceptional circumstances and as such this petition is hereby dismissed.

(Sardar Muhammad Sarfraz Dogar) (Sadiq Mahmud Khurram)
Judge Judge

RAHEEL

APPROVED FOR REPORTING

Judge

Judge